SECTION 1

Who Is the Thief?

Four cases · owner, loss, law

Most people can picture a thief: someone who takes what belongs to another, without permission. The thief is usually the easiest person in the story to identify. The label seems to follow from the act. This section tests that idea through four cases.

Each case is checked against three conditions: an owner, a loss, and a law that names the taking as a crime. In an ordinary theft, all three are present, and so is the thief. Each case that follows keeps the taking in plain sight and changes something else.

Two women take the same goods from the same counter, but only one is called a thief. An outlaw robs travellers at knifepoint, and centuries of retelling turn him into a hero. A palace is looted, and its treasures pass through so many lawful hands that no single person seems to have taken them.

The taking stays visible throughout. What changes is who the taker is, who the victim is, where the goods end up, and how much time has passed. The label ‘thief’ turns out to depend on more than the act.

Audio guide · Section 1
Scan to listen

1

SECTION 1 · CASE 1

ORDINARY THEFT

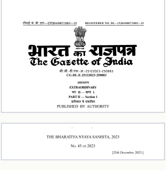
A wallet, taken on a crowded street · Present day

On a crowded street, a hand slips into a pocket and leaves with a wallet. The owner notices only later. A complaint is filed, and if the pickpocket is caught, the law takes its course. Cash, cards and jewellery are taken the same way.

In India, that law is Section 303 of the Bharatiya Nyaya Sanhita, 2023. It defines theft as dishonestly taking someone’s movable property out of their possession, without consent. The pickpocket’s act fits every part of that definition.

Owner, loss, law: all three are present, and the thief is obvious. Note the word *movable*. Under this section, land cannot be stolen at all — a limit Section 3 of this exhibition returns to.

OWNER ✓ LOSS ✓ LAW ✓ → **Thief: obvious**

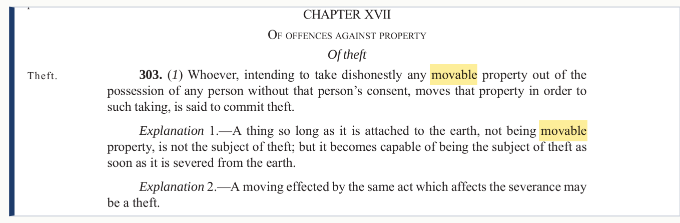


भारत का राजपत्र
The Gazette of India
EXTRAORDINARY
PART II — Section 1
PUBLISHED BY AUTHORITY

THE BHARATIYA NYAYA SANHITA, 2023
No. 45 of 2023
[25th December, 2023.]

THE GAZETTE OF INDIA · EXTRAORDINARY · NO. 53 · 25 DEC 2023 · PAGE 1

GOVERNMENT DOCUMENT · CLIPPED FROM THE OFFICIAL GAZETTE, PAGE 78



CHAPTER XVII

OF OFFENCES AGAINST PROPERTY

Of theft

Theft. **303.** (*1*) Whoever, intending to take dishonestly any movable property out of the possession of any person without that person’s consent, moves that property in order to such taking, is said to commit theft.

Explanation 1.—A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

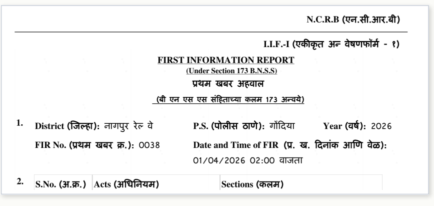
Explanation 2.—A moving effected by the same act which affects the severance may be a theft.

Section 303, Bharatiya Nyaya Sanhita, 2023

2023 · The Gazette of India, Extraordinary, Part II — Section 1 · Clipped from the official Gazette

India’s criminal code defines theft as dishonestly taking **movable** property from someone’s possession without consent. Explanation 1 spells out the limit: a thing attached to the earth ‘is not the subject of theft’. Under this section, land cannot be stolen.

INCIDENT REPORT · FIRST INFORMATION REPORT, PAGE 1



N.C.R.B (एन.सी.आर.बी)

I.I.F.-I (एकीकृत अन्‍ वेषणफॉर्म - १)

FIRST INFORMATION REPORT
(Under Section 173 B.N.S.S)
प्रथम खबर अहवाल
(बी एन एस एस संहिताच्या कलम 173 अन्वये)

1. District (जिल्हा): नागपुर रेल वे P.S. (पोलीस ठाणे): गोंदिया Year (वर्ष): 2026
FIR No. (प्रथम खबर क्र.): 0038 Date and Time of FIR (प्र. ख. दिनांक आणि वेळ): 01/04/2026 02:00 वाजता

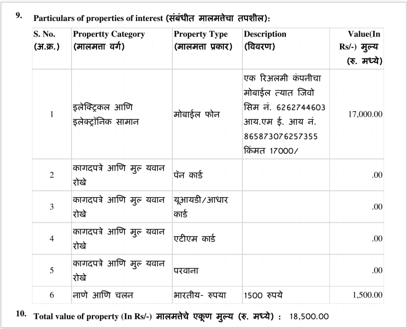
2. S.No. (अ.क्र.) Acts (अधिनियम) Sections (कलम)

First Information Report No. 0038/2026

P.S. Gondia (Railway), Nagpur Railway Police District · 1 April 2026 · Published by Nagpur Railway Police · Reproduction

Filed at a railway police station in Maharashtra. A traveller fell asleep on a bench opposite the booking office at Gondia station; when he woke, his phone was gone from his trouser pocket, and so was his purse with his ID cards and ₹1,500. Accused: ‘unknown’. Section: BNS 303(2), theft. Every later case in this section is checked against the same three lines: owner, loss, law.

PAGE 3 · ITEM 9: PROPERTY STOLEN



9. Particulars of properties of interest (संबंधीत मालमत्तेचा तपशील):

S. No. (अ.क्र.)	Property Category (मालमत्ता वर्ग)	Property Type (मालमत्ता प्रकार)	Description (विवरण)	Value(In Rs/-) मुल्य (रु. मध्ये)
1	इलेक्ट्रिकल आणि इलेक्ट्रॉनिक सामान	मोबाईल फोन	एक रिअलमी कंपनीचा मोबाईल त्यात जियो सिम नं. 6262744603 आय.एम ई. आय नं. 865873076257355 किंमत 17000/	17,000.00
2	कागदपत्रे आणि मुल्‍ यवान रोखे	पॅन कार्ड		.00
3	कागदपत्रे आणि मुल्‍ यवान रोखे	यूआयडी/आधार कार्ड		.00
4	कागदपत्रे आणि मुल्‍ यवान रोखे	एटीएम कार्ड		.00
5	कागदपत्रे आणि मुल्‍ यवान रोखे	परवाना		.00
6	नाणे आणि चलन	भारतीय- रुपया	1500 रुपये	1,500.00

10. Total value of property (In Rs/-) मालमत्तेचे एकूण मुल्य (रु. मध्ये) : 18,500.00

Mobile phone ₹17,000 · PAN card · Aadhaar card · ATM card · licence · cash ₹1,500 · **total ₹18,500**

OWNER ✓ LOSS ✓ LAW ✓ → **Thief: obvious**

The full six-page FIR, with an English translation of the complaint, is on the desk below.

HOW TO READ THIS SECTION

OWNER ✓	Someone the thing belongs to
LOSS ✓	They no longer have it
LAW ✓	A law names the taking as a crime

Each case has this strip. Watch which one changes.

Listen & see the sources
Audio guide · Case 1 · A Wallet on a Crowded Street

SECTION 1 · CASE 2

KLEPTOMANIA AND CLASS

Two shoplifters, one counter, two verdicts · Department stores in the United States and Britain, 1870s–1900s

From the 1870s, large department stores spread through American and British cities. Goods sat on open counters, and shoppers could handle them freely. Shoplifting rose with them. Many of those caught were middle-class women, the stores’ best customers, taking things they could easily afford. Doctors offered an explanation. Since the early nineteenth century, they had described ‘kleptomania’, an urge to steal. Applied to these women, it turned a crime into an illness. Stores, unwilling to lose respectable customers, often settled such cases quietly.

The diagnosis did not reach everyone. In New York in 1882, Ellen Sardy was caught in a Sixth Avenue department store with three pairs of hosiery and five pieces of silk. Her lawyer admitted the theft and asked for clemency because she had been ‘of weak mind’. The court accepted it and she went free. Historian Elaine Abelson, who recovered the case, writes that only middle-class women seemed to suffer from kleptomania: ‘stealing by members of other classes was simple theft’.

Owner and loss are identical in both cases, and so is the law. Only the person differs. The act did not decide the label; class did.

OWNER ✓ LOSS ✓ LAW ✓ → **Thief: depends on who you are**

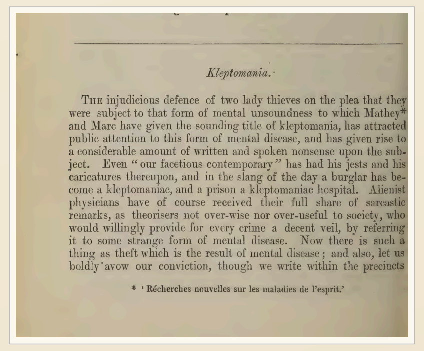
SAME GOODS · TWO VERDICTS

COMPARISON

NEW YORK · JANUARY 1882	LONDON · MAY 1895
Ellen Sardy	**Hannah Wilson & Ann Hanstead**
Caught in Simpson, Crawford & Simpson’s Sixth Avenue store with three pairs of stockings and five pieces of silk. Her lawyer admitted the theft and pleaded that she had been ‘of weak mind’.	Caught at a City silk warehouse with eighty-six yards of silk rolled under a skirt. Wilson told the court she was ‘a respectable woman, of Hackney’. No doctor spoke for them; both had a previous conviction.
KLEPTOMANIA She went free.	**THEFT** Guilty. Three years’ penal servitude.

A Paris newspaper of the period suggested defining a thief as ‘a kind of kleptomaniac, but of the lower social class’ — and a kleptomaniac as ‘a kind of thief, but of the better class’.

Two verdicts (comparison) · *Made for this exhibition · Based on Elaine S. Abelson, ‘The Invention of Kleptomania’, Signs 15:1 (1989), citing the New York Times, 18 Jan 1882; and the Proceedings of the Old Bailey, trial t18950520-454*



Kleptomania.

The injudicious defence of two lady thieves on the plea that they were subject to that form of mental unsoundness to which Mathey* and Marc have given the sounding title of kleptomania, has attracted public attention to this form of mental disease, and has given rise to a considerable amount of written and spoken nonsense upon the subject. Even “our facetious contemporary” has had his jests and his caricatures thereupon, and in the slang of the day a burglar has become a kleptomaniac, and a prison a kleptomaniac hospital. Alienist physicians have of course received their full share of sarcastic remarks, as theorisers not over-wise nor over-useful to society, who would willingly provide for every crime a decent veil, by referring it to some strange form of mental disease. Now there is such a thing as theft which is the result of mental disease; and also, let us boldly avow our conviction, though we write within the precincts

* ‘Récherches nouvelles sur les maladies de l’esprit.’

‘Kleptomania’, *The Journal of Mental Science*

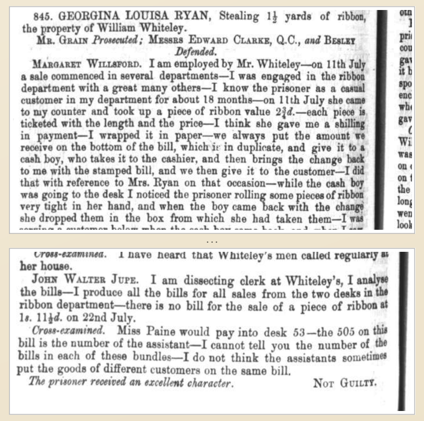
July 1862 · Vol. 8, pp. 262–275 · British psychiatric journal · Reproduction of page 262

The article opens with ‘the injudicious defence of two lady thieves’ on the plea of kleptomania. Writing like this gave families and courts a medical account of shoplifting to set against a criminal one. The full article is on the desk.

Scan: Wellcome Library / Internet Archive (public domain).

TWO TRIALS AT THE OLD BAILEY

1885 · WHITELEY’S, WESTBOURNE GROVE



845. GEORGINA LOUISA RYAN, Stealing 1½ yards of ribbon, the property of William Whiteley.

MR. GRAIN *Prosecuted;* MESSRS EDWARD CLARKE, Q.C., *and* BESLEY *Defended.*

MARGARET WILLSFORD. I am employed by Mr. Whiteley—on 11th July a sale commenced in several departments—I was engaged in the ribbon department with a great many others—I know the prisoner as a casual customer in my department for about 18 months—on 11th July she came to my counter and took up a piece of ribbon value 2¾*d.*—each piece is ticketed with the length and the price—I think she gave me a shilling in payment—I wrapped it in paper—we always put the amount we receive on the bottom of the bill, which is in duplicate, and give it to a cash boy, who takes it to the cashier, and then brings the change back to me with the stamped bill, and we then give it to the customer—I did that with reference to Mrs. Ryan on that occasion—while the cash boy was going to the desk I noticed the prisoner rolling some pieces of ribbon very tight in her hand, and when the boy came back with the change she dropped them in the box from which she had taken them—I was

…

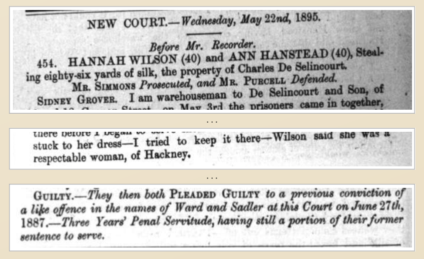
Cross-examined. I have heard that Whiteley’s men called regularly at her house.

JOHN WALTER JUPE. I am dissecting clerk at Whiteley’s, I analyse the bills—I produce all the bills for all sales from the two desks in the ribbon department—there is no bill for the sale of a piece of ribbon at 1*s.* 11½*d.* on 22nd July.

Cross-examined. Miss Paine would pay into desk 53—the 505 on this bill is the number of the assistant—I cannot tell you the number of the bills in each of these bundles—I do not think the assistants sometimes put the goods of different customers on the same bill.

The prisoner received an excellent character. NOT GUILTY.

1895 · DE SELINCOURT’S SILK WAREHOUSE



NEW COURT.—*Wednesday, May 22nd, 1895.*

Before Mr. Recorder.

454. HANNAH WILSON (40) and ANN HANSTEAD (40), Stealing eighty-six yards of silk, the property of Charles De Selincourt.

MR. SIMMONS *Prosecuted, and* MR. PURCELL *Defended.*

SIDNEY GROVER. I am warehouseman to De Selincourt and Son, of

…

stuck to her dress—I tried to keep it there—Wilson said she was a respectable woman, of Hackney.

…

GUILTY.—*They then both* PLEADED GUILTY *to a previous conviction of a like offence in the names of Ward and Sadler at this Court on June 27th, 1887.—Three Years’ Penal Servitude, having still a portion of their former sentence to serve.*

Proceedings of the Central Criminal Court, London

Listen & see the sources
Audio guide · Case 2 · Two Shoplifters, One Counter

SECTION 1 · CASE 3

Robbing the Rich

Robin Hood and six centuries of retelling · England, 1370s to today

Robin Hood is first mentioned in the 1370s, when the poem *Piers Plowman* refers to ‘rhymes of Robin Hood’. The poem says nothing about who he was or what he did; it tells us only that such rhymes already circulated.

The earliest surviving ballads, from about 1450, describe an outlaw living in the forest with a band of followers, in conflict with a corrupt sheriff. He stops wealthy travellers on the road and takes what they carry at the point of a weapon. The ballads are frank about the violence, and they are also frank about what they do not say: they do not describe him giving to the poor. That line is first set down plainly by John Stow in 1592, roughly a century after *A Gest of Robyn Hode*, and it is the version that has lasted.

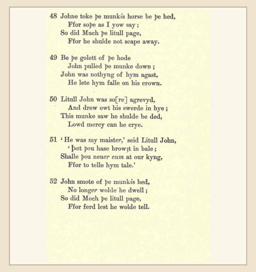
Owner, loss and law are all present. The travellers owned what they carried, they lost it, and Robin lived outside the law’s protection as a declared outlaw. Nothing is missing. What changed was not the robbery but the story told about it afterwards — and each retelling gave the robberies a better reason.

OWNER ✓ LOSS ✓ LAW ✓ → **Thief, retold as hero**

Each retelling gave him a better reason

TIMELINE

1370s	c.1450	c.1500	1592	1922 · 1938
Piers Plowman	*Robin Hood and the Monk*	*A Gest of Robyn Hode*	John Stow, *Annales*	Fairbanks, Flynn
MENTIONED	VIOLENT OUTLAW	HELPS A POOR KNIGHT	ROBS THE RICH, SPARES THE POOR	WRONGED NOBLEMAN
‘Rhymes of Robin Hood’ exist. Nothing more.	His men kill a monk and his page.	Lends money. No ‘rich to poor’.	The line that lasts.	Fights injustice on screen.



48 Johne toke þe munkis horse be þe hed,
Ffor soþe as I yow say;
So did Much þe litull page,
Ffor he shulde not scape away.

49 Be þe golett of þe hode
John pulled þe munke down;
John was nothyng of hym agast,
He lete hym falle on his crown.

50 Litull John was so[re] agrevyd,
And drew owt his swerde in hye;
This munke saw he shulde be ded,
Lowd mercy can he crye.

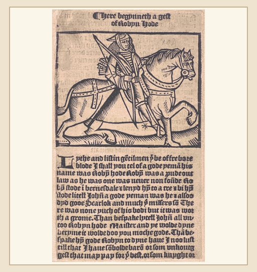
51 ‘He was my maister,’ seid Litull John,
‘Þat þou hase browȝt in bale;
Shalle þou neuer cum at our kyng,
Ffor to telle hym tale.’

52 John smote of þe munkis hed,
No longer wolde he dwell;
So did Moch þe litull page,
Ffor ferd lest he wolde tell.

Robin Hood and the Monk

About 1450 · Ballad, stanzas 48–52 · Original: Cambridge University Library MS Ff.5.48 · Text as printed by F. J. Child, 1888

The oldest surviving Robin Hood ballad, and an openly violent one: Little John beheads the monk who betrayed Robin, and Much kills the monk’s young page ‘for ferd lest he wolde tell’.

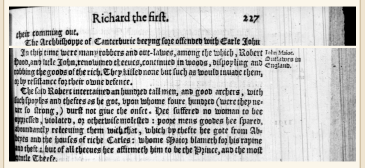


Here begynneth a gest of Robyn Hode

A Gest of Robyn Hode

Printed in Edinburgh by Chepman & Myllar, c.1508 · Opening page · Reproduction; original in the National Library of Scotland

The longest early ballad: ‘Lythe and listin, gentilmen…’. Robin helps a poor knight with a loan, but never robs the rich to give to the poor.



Richard the first. 227

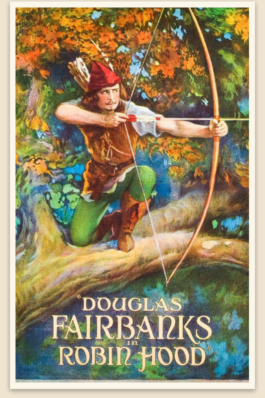
their comming out.
The Archbishoppe of Canterburie beeyng sore offended with Earle John
In this time were many robbers and out-lawes, among the which, Robert Hood, and litle John, renowmed theeues, continued in woods, dispoyling and robbing the goods of the rich. They killed none but such as would inuade them, or by resistance for their owne defence.
The said Robert entertained an hundred tall men, and good archers, with such spoyles and theftes as he got, vpon whome foure hundred (were they neuer so strong,) durst not giue the onset. Hee suffered no woman to bee oppressed, violated, or otherwise molested: poore mens goodes hee spared, abundantly releeuing them with that, which by thefte hee gote from Abbeyes and the houses of riche Carles: whome Maior blameth for his rapine and theft: but of all theeues hee affirmeth him to be the Prince, and the most gentle Theefe.

John Maior. Outlawes in England.

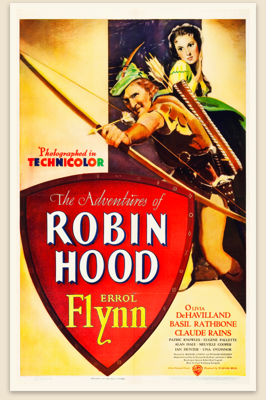
John Stow, ***The Annales of England***

London, 1592 · Page 227 · Reproduction from the Early English Books scan

‘…poore mens goodes hee spared, abundantly releeuing them with that, which by thefte hee gote from Abbeyes and the houses of riche Carles.’ The best-known part of the story is the latest addition.



DOUGLAS FAIRBANKS in ROBIN HOOD



Photographed in TECHNICOLOR
The Adventures of ROBIN HOOD
ERROL Flynn
OLIVIA DeHAVILLAND
BASIL RATHBONE
CLAUDE RAINS
PATRIC KNOWLES · EUGENE PALLETTE
ALAN HALE · MELVILLE COOPER
IAN HUNTER · UNA O'CONNOR

Robin Hood on screen

1922 and 1938 · Film posters · Reproductions

Posters for the Douglas Fairbanks (1922) and Errol Flynn (1938) films. In both, Robin is a wronged nobleman fighting injustice rather than an outlaw robbing travellers at knifepoint.

Posters: United Artists (1922), Warner Bros. (1938). Public domain; via Wikimedia Commons.

Hear the ballads & see the sources
Audio guide · Case 3 · Robbing the Rich

SECTION 1 · CASE 4

The Benin Bronzes

Who exactly is the thief? · Benin City (now in Nigeria), 1897 to today

In 1897, a British punitive expedition captured Benin City, burned the royal palace and removed thousands of brass plaques, ivories and commemorative heads. Many were auctioned in London to defray the cost of the expedition itself. Others entered Western museums over the following decades through purchase, donation and transfer. These were not currency or raw material: the plaques were the palace’s own record of its dynasty, an archive kept in place.

Owner and loss are not in doubt. What is missing is the third condition. Each transfer was lawful where it took place, and every person in the chain can point to someone earlier. With no act the law named as a crime, the chain has no obvious thief — only a sequence of people who each acted correctly, and a benefit that passed down the line with the objects.

The question has since moved from who took the objects to who holds them now. In 2022 the Smithsonian transferred ownership of 29 objects to Nigeria’s National Commission for Museums and Monuments. In 2023 Nigeria’s outgoing president declared the Oba of Benin the owner of returned bronzes, and who should hold, keep and display them within Nigeria remains disputed. Returning an object settles ownership. It does not settle who is answerable for how it left.

OWNER ✓ LOSS ✓ LAW ✗ → **Thief: no one?**

The chain of hands

DIAGRAM

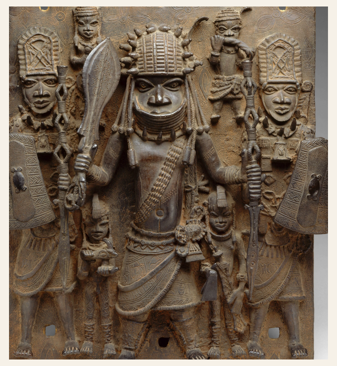
1	2	3
Soldier Carried a plaque out of the palace, following orders.	**Officer** Led an expedition authorised in London.	**Auction, London** Sold objects to pay for the expedition.
4 **Dealer** Bought at auction. Lawful.	**5** **Museum** Bought from the dealer. Lawful.	**6** **Curator, 1950** Catalogued it. Took nothing.

Each was lawful where it took place. Each can point to someone earlier.

2022 · Smithsonian transfers ownership of 29 objects to Nigeria’s NCMM

2023 · Oba of Benin declared owner; who holds them is disputed

The chain of hands (diagram) · Made for this exhibition



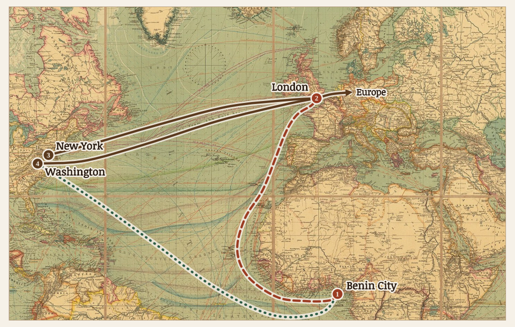
Brass plaque from the royal palace of Benin (image)

Edo peoples, c.1540–70 · Enlarged image · Original: The Metropolitan Museum of Art, New York (1990.332)

Cast by Benin’s royal guild of brass casters and fixed to the palace’s pillars, plaques like this recorded kings, warriors and court ceremonies. They were the palace’s archive, not decoration.

Image: The Met, Plaque with Warrior and Attendants, 1990.332, Gift of Mr. and Mrs. Klaus G. Perls, 1990. Open Access (CC0).

From Benin City to the world



- - - 1897 · Taken from ① Benin City to ② London, where many were auctioned

— After 1897 · Sold on to collections in Europe and North America, among them ③ the Met and ④ the Smithsonian

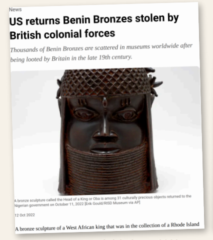
······ 2022 · The Smithsonian transfers ownership of 29 objects back to Nigeria

From Benin City to the world (map)

Map: Hermann Berghaus, Chart of the World on Mercator’s Projection, Gotha: Justus Perthes, 1897 · Detail

A world map printed in the year of the raid, with the objects’ journeys drawn on for this exhibition. Objects taken from Benin City were auctioned in London and passed to collections across Europe and North America. More than a century later, most of them are still outside Nigeria.

Map: public domain, via Wikimedia Commons (from Barry Lawrence Ruderman Antique Maps).



News

US returns Benin Bronzes stolen by British colonial forces

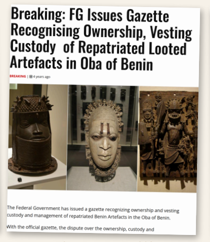
Thousands of Benin Bronzes are scattered in museums worldwide after being looted by Britain in the late 19th century.

A bronze sculpture called the Head of a King or Oba is among 31 culturally precious objects returned to the Nigerian government on October 11, 2022 [Erik Gould/RISD Museum via AP]

12 Oct 2022

A bronze sculpture of a West African king that was in the collection of a Rhode Island

AL JAZEERA · 12 OCTOBER 2022

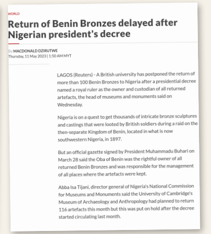


Breaking: FG Issues Gazette Recognising Ownership, Vesting Custody of Repatriated Looted Artefacts in Oba of Benin

The Federal Government has issued a gazette recognizing ownership and vesting custody and management of repatriated Benin Artefacts in the Oba of Benin.

With the official gazette, the dispute over the ownership, custody and

THISDAY · 13 APRIL 2023



WORLD

Return of Benin Bronzes delayed after Nigerian president's decree

By MACDONALD DZIRUTWE

LAGOS (Reuters) - A British university has postponed the return of more than 100 Benin Bronzes to Nigeria after a presidential decree named a royal ruler as the owner and custodian of all returned artefacts, the head of museums and monuments said on Wednesday.

Nigeria is on a quest to get thousands of intricate bronze sculptures and castings that were looted by British soldiers during a raid on the then-separate Kingdom of Benin, located in what is now southwestern Nigeria, in 1897.

But an official gazette signed by President Muhammadu Buhari on March 28 said the Oba of Benin was the rightful owner of all returned Benin Bronzes and was responsible for the management of all places where the artefacts were kept.

Abba Isa Tijani, director general of Nigeria's National Commission for Museums and Monuments said the University of Cambridge's Museum of Archaeology and Anthropology had planned to return 116 artefacts this month but this was put on hold after the decree started circulating last month.

REUTERS, VIA THE STAR · 11 MAY 2023

Returning the bronzes

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October 2022: 29 objects go back from the Smithsonian. March 2023: Nigeria’s president names the Oba of Benin owner. May 2023: returns stall over who should receive them. Full articles are on the desk.

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